1.

CASE #	CASE NAME	HEARING NAME
CVMV2603709	COLLIER VS SAN GORGONIO MEMORIAL HOSPITAL	PETITION FOR ENFORCE ACCESS TO MEDICAL RECORDS UNDER EVIDENCE CODE SECTION 1158 AND REQUEST FOR ATTORNEY’S FEES AND COSTS

Tentative Ruling: PETITION GRANTED

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403260	QUIJANO VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Proof Of Service: Proper

DENY as untimely.

Plaintiffs, Juan and Sonya Quijano, allege that on 7/26/23, he purchased a new 2024 Chevrolet Silverado for $95,316.72 from Riverside Chevrolet, which was accompanied by warranties. Defendant General Motors, LLC manufacture red the vehicle. Plaintiffs allege the vehicle was delivered with serious defects and nonconformities to warranty including the engine and steering system. Plaintiffs presented the vehicle for repairs to a GM authorized repair facility on several occasions, which represented the vehicle was repaired but, was unable to conform it to the warranty after a reasonable number of repair attempts. Plaintiffs continued to experience symptoms of the defects, which impaired the use, value and/or safety of the vehicle. Defendant refused to repurchase or replace the vehicle. Plaintiffs filed their complaint on 6/12/24 alleging three causes of action for violations of the Song Beverly Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2.

Now, Plaintiffs move for $48,083.34 in attorneys’ fees and costs. This amount consists of $44,564.17 in attorneys’ fees, an additional $2,250 to review Defendant’s opposition, draft the reply, and attend the hearing on this motion, and $1,269.17 in costs. Plaintiffs state they are the prevailing party under the Song-Beverly Act and pursuant to the CCP § 998 Offer agreed to between the parties. Plaintiffs argue they are thus entitled to attorneys’ fees and provide support for the requested hourly rates and billing entries.

In opposition, Defendant argues the motion should be denied entirely as untimely. In the alternative, Defendant challenges the reasonableness of the rates, argues entries are excessive, and that no multiplier is warranted.